



FLORIDA DEPARTMENT OF Environmental Protection

Northwest District
160 W. Government Street, Suite 308
Pensacola, FL 32502

Ron DeSantis
Governor

Jeanette Nuñez
Lt. Governor

Noah Valenstein
Secretary

January 14, 2019

BY ELECTRONIC MAIL
(salexander@acgmaterials.com)

In the Matter of an
Application for Permit by:

North Florida Rock LLC
Scott Alexander
Vice President
5160 Vermont Rd
Marianna, Florida 32448-7473

File Number: FL0980722-001-IW3S
North Florida Rock
Jackson County

Enclosed is Permit Number FL0980722 to construct and operate North Florida Rock, issued under Chapter 403, Florida Statutes.

Monitoring requirements under this permit are effective on the first day of the second month following the effective date of the permit. Until such time, the permittee shall continue to monitor and report in accordance with previously effective permit requirements, if any.

Any party to this order (permit) has the right to seek judicial review of the permit action under Section 120.68, Florida Statutes, by the filing of a notice of appeal under Rules 9.110 and 9.190, Florida Rules of Appellate Procedure, with the Clerk of the Department of Environmental Protection, Office of General Counsel, 3900 Commonwealth Boulevard, Mail Station 35, Tallahassee, Florida 32399-3000, and by filing a copy of the notice of appeal accompanied by the applicable filing fees with the appropriate district court of appeal. The notice of appeal must be filed within 30 days from the date when this document is filed with the Clerk of the Department.

Executed in Orlando, Florida.

STATE OF FLORIDA DEPARTMENT
OF ENVIRONMENTAL PROTECTION

A handwritten signature in cursive script that reads "Emile D. Hamilton".

Emile D. Hamilton
Director

FILING AND ACKNOWLEDGMENT

FILED, on this date, under Section 120.52, Florida Statutes, with the designated Deputy Clerk, receipt of which is hereby acknowledged.

CERTIFICATE OF SERVICE

The undersigned hereby certifies that this DOCUMENT AND ATTACHMENTS and all copies were mailed before the close of business on the date of this document to the listed persons.



January 14, 2019

Clerk

Date

Enclosures:

Permit FL0980722-001-IW3S

Fact Sheet FL0980722-001-IW3S

c:

Molly Davis, Chief, NPDES Permitting Section, EPA Region 4 (r4npdespermits@epa.gov)

Paul Thorpe, Bureau Chief, Environmental & Resource Planning, Northwest Florida Water Management District (paul.thorpe@nwfwater.com)

Chair, Jackson County Board of County Commissioners (Kcloud@jacksoncountyfl.com)

Kristie Cloud, Assistant to the Administrator, Jackson County (Kcloud@jacksoncountyfl.com)

Tommy Harkrider - Florida Department of Health Jackson County, Environmental Health Director (tommy.harkrider@flhealth.gov)

Georgia Ackerman, Apalachicola Riverkeeper and Executive Director (riverkeeper@apalachicolariverkeeper.org)

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STATE OF FLORIDA INDUSTRIAL WASTEWATER FACILITY PERMIT

PERMITTEE:

North Florida Rock LLC

RESPONSIBLE OFFICIAL:

Scott Alexander
Vice President
5160 Vermont Rd
Marianna, Florida 32448-7473
(850) 769-2481

PERMIT NUMBER: FL0980722 (Minor)
FILE NUMBER: FL0980722-001-IW3S
ISSUANCE DATE: January 14, 2019
EFFECTIVE DATE: January 14, 2019
EXPIRATION DATE: January 13, 2024

FACILITY:

North Florida Rock
5160 Vermont Rd
Marianna, FL 32448-7473
Jackson County
Latitude: 30°38' 14.8504" N Longitude: 85°10' 7.2884" W

This permit is issued under the provisions of Chapter 403, Florida Statutes (F.S.), and applicable rules of the Florida Administrative Code (F.A.C.) and constitutes authorization to discharge to waters of the state under the National Pollutant Discharge Elimination System. This permit does not constitute authorization to discharge wastewater other than as expressly stated in this permit. The above-named permittee is hereby authorized to construct and operate the facilities in accordance with the documents attached hereto and specifically described as follows:

FACILITY DESCRIPTION:

Multiple mechanically-mined limestone pits and dry processing facility. There are six phases of mining and dewatering operations. Phases 2-6 are future phases in order of progression.

Phase 1: Active pits A and C (existing operations)

Phase 2: Active pits B and D with dewatering of inactive pit A. Results in a combined pit A/B.

Phase 3: Active pits C and D

Phase 4: Active pits D and E

Phase 5: Active pits E and F

Phase 6: Active pit F

WASTEWATER TREATMENT:

Dewatering of ground water and rain water from active limestone quarry mines. Wastewater treatment is provided by settling ponds and/or inactive mining pits as settling ponds to meet surface water criteria. See attached Site Plan.

Phase 1: Active pits A and C (existing operations): modified existing settling pond relocating dewatering pump discharge pipes to maximize flow path to new 8-foot broad-crested weir with concrete block agitators on discharge slope of weir with overland flow to outfall D-001. (6.23 MGD AADF)

Phase 2: Active pits B and D with dewatering of inactive pit A: temporarily inactive pit C will flood as settling pond with new drop box outfall piped to outfall D-002. (6.39 MGD AADF)

Phase 3: Active pits C and D: completed pit, the combined pits A/B that will flood as settling pond with drop box outfall piped to outfall D-001. (6.09 MGD AADF)

Phase 4: Active pits D and E:

Pit D will dewater to the combined pit A/B that will flood as settling pond with a drop box outfall piped to outfall D-001. (1.98 MGD AADF)

Pit E will dewater to completed pit C that will flood as settling pond with a drop box outfall piped to outfall D-002. (4.07 MGD AADF)

Phase 5: Active pits E and F:

Pit E will dewater to completed pit C that will flood as settling pond with a drop box outfall piped to outfall D-002. (4.07 MGD AADF)

Pit F will dewater to the combined pit A/B that will flood as settling pond with a drop box outfall piped to outfall D-001. (1.83 MGD AADF)

Phase 6: Active pit F: Pit F will dewater to the combined pit A/B that will flood as settling pond with a drop box outfall piped to outfall D-001. (3.56 MGD AADF)

DISPOSAL:

Surface Water Discharge D-001: A new 6.23 MGD Annual Average Daily Flow permitted discharge to un-named intermittent creek to swallet approximately 45-feet inland from the bank of the Chipola River, landward of the natural floodplain bank, Class III Fresh Waters, (WBID# 51D). The point of discharge is located approximately at latitude 30°38' 14.7841" N, longitude 85°10' 17.8426" W.

Phase 1 Settling pond outfall consists of an 8-foot broad-crested weir with concrete block agitators on discharge slope of weir with overland flow to discharge point at surface level.

Phases 3, 4, 5 and 6 are the same outfall from the combined pit A/B that will flood as settling pond with a drop box outfall piped to discharge point at surface level.

Surface Water Discharge D-002: A new 6.39 MGD Annual Average Daily Flow permitted discharge to un-named tributary approximately 1,500 feet to the Chipola River, Class III Fresh Waters and Outstanding Florida Water (OFW), (WBID# 51D). The point of discharge is located approximately at latitude 30°38' 25.6209" N, longitude 85°9' 53.8985" W.

Phase 2 temporarily inactive pit C will flood as settling pond with new drop box outfall piped to discharge point at surface level.

Phases 4 and 5 are the same outfall from the completed pit C that will flood as settling pond with a drop box outfall piped to discharge point at surface level.

IN ACCORDANCE WITH: The limitations, monitoring requirements and other conditions set forth in this Cover Sheet and Part I through Part IX on pages 1 through 13 of this permit.

I. EFFLUENT LIMITATIONS AND MONITORING REQUIREMENTS

A. Surface Water Discharges

D-001 (Conditions I.A.1-4)

- During the period beginning on the effective date and lasting through the expiration date of this permit, the permittee is authorized to discharge process wastewater, stormwater, and ground water from Outfall D-001 to un-named intermittent creek to swallet. Such discharge shall be limited and monitored by the permittee as specified below and reported in accordance with Permit Condition I.B.3.:

			Effluent Limitations		Monitoring Requirements			
Parameter	Units	Max/ Min	Limit	Statistical Basis	Frequency of Analysis	Sample Type	Monitoring Site Number	Notes
Flow	MGD	Max Max	Report Report	Annual Average Monthly Average	5 Days/Week	Calculated	FLW-01	
Oxygen, Dissolved Percent Saturation	percent samples in compliance (% smpcmpln)	Max	90	Monthly Total	5 Days/Week	Meter	EFF-01	See I.A.4
Turbidity	NTU	Max	29	Single Sample	Weekly	Meter	EFF-01	
pH	s.u.	Max Min	8.5 6.0	Single Sample Single Sample	Weekly	Meter	EFF-01	
Specific Conductance	umhos/cm	Max	1275	Single Sample	Weekly	Meter	EFF-01	
Solids, Total Suspended	mg/L	Max Max Max Max	20 30 45 60	Annual Average Monthly Average Weekly Average Single Sample	Weekly	Grab	EFF-01	
Nitrogen, Total	mg/L	Max Max	Report Report	Annual Average Monthly Average	Monthly	Grab	EFF-01	
Phosphorus, Total (as P)	mg/L	Max Max	Report Report	Annual Average Monthly Average	Monthly	Grab	EFF-01	
Chlorophyll a	ug/L	Max Max	Report Report	Annual Average Monthly Average	Monthly	Grab	EFF-01	

2. Effluent samples shall be taken at the monitoring site locations listed in Permit Condition I.A.1. and as described below:

Monitoring Site Number	Description of Monitoring Site
FLW-01	calculated flow to D-001
EFF-01	effluent from settling pond/inactive pit as settling pond

3. The discharge shall not contain components that settle to form putrescent deposits or float as debris, scum, oil, or other matter. [62-302.500(1)(a)]
4. No more than 10 percent of the daily average percent dissolved oxygen (DO) saturation values shall be below 67%. To report the percent samples in compliance, count the number of daily average values greater than or equal to 67%, divide by the total number of daily average values, and multiply by 100% (round to the nearest integer). [62-302.533(1)(a)]

D-002 (Conditions I.A.5-7)

5. During the period beginning on the effective date and lasting through the expiration date of this permit, the permittee is authorized to discharge process wastewater, stormwater, and ground water from Outfall D-002 to un-named tributary to Chipola River. Such discharge shall be limited and monitored by the permittee as specified below and reported in accordance with Permit Condition I.B.3.:

Parameter	Units	Max/ Min	Effluent Limitations		Monitoring Requirements			Notes
			Limit	Statistical Basis	Frequency of Analysis	Sample Type	Monitoring Site Number	
Flow	MGD	Max Max	Report Report	Annual Average Monthly Average	5 Days/Week	Calculated	FLW-02	
Oxygen, Dissolved Percent Saturation	percent samples in compliance (% smpcmpln)	Max	90	Monthly Total	5 Days/Week	Meter	EFF-02	See I.A.4
Turbidity	NTU	Max	29	Single Sample	Weekly	Meter	EFF-02	
pH	s.u.	Max Min	8.5 6.0	Single Sample Single Sample	Weekly	Meter	EFF-02	
Specific Conductance	umhos/cm	Max	1275	Single Sample	Weekly	Meter	EFF-02	
Solids, Total Suspended	mg/L	Max Max Max Max	20 30 45 60	Annual Average Monthly Average Weekly Average Single Sample	Weekly	Grab	EFF-02	
Nitrogen, Total	mg/L	Max Max	Report Report	Annual Average Monthly Average	Monthly	Grab	EFF-02	
Phosphorus, Total (as P)	mg/L	Max Max	Report Report	Annual Average Monthly Average	Monthly	Grab	EFF-02	
Chlorophyll a	ug/L	Max Max	Report Report	Annual Average Monthly Average	Monthly	Grab	EFF-02	

6. Effluent samples shall be taken at the monitoring site locations listed in Permit Condition I.A.0. and as described below:

Monitoring Site Number	Description of Monitoring Site
FLW-02	calculated flow to D-002
EFF-02	effluent from inactive pit as settling pond

7. The discharge shall not contain components that settle to form putrescent deposits or float as debris, scum, oil, or other matter. [62-302.500(1)(a)]

B. Other Limitations and Monitoring and Reporting Requirements

1. The sample collection, analytical test methods, and method detection limits (MDLs) applicable to this permit shall be conducted using a sufficiently sensitive method to ensure compliance with applicable water quality standards and effluent limitations and shall be in accordance with Rule 62-4.246, Chapters 62-160 and 62-600, F.A.C., and 40 CFR 136, as appropriate. The list of Department established analytical methods, and corresponding MDLs (method detection limits) and PQLs (practical quantitation limits), which is titled "FAC 62-4 MDL/PQL Table (April 26, 2006)" is available at <http://www.dep.state.fl.us/labs/library/index.htm>. The MDLs and PQLs as described in this list shall constitute the minimum acceptable MDL/PQL values and the Department shall not accept results for which the laboratory's MDLs or PQLs are greater than those described above unless alternate MDLs and/or PQLs have been specifically approved by the Department for this permit. Any method included in the list may be used for reporting as long as it meets the following requirements:
 - a. The laboratory's reported MDL and PQL values for the particular method must be equal or less than the corresponding method values specified in the Department's approved MDL and PQL list;
 - b. The laboratory reported MDL for the specific parameter is less than or equal to the permit limit or the applicable water quality criteria, if any, stated in Chapter 62-302, F.A.C. Parameters that are listed as "report only" in the permit shall use methods that provide an MDL, which is equal to or less than the applicable water quality criteria stated in 62-302, F.A.C.; and
 - c. If the MDLs for all methods available in the approved list are above the stated permit limit or applicable water quality criteria for that parameter, then the method with the lowest stated MDL shall be used.

When the analytical results are below method detection or practical quantitation limits, the permittee shall report the actual laboratory MDL and/or PQL values for the analyses that were performed following the instructions on the applicable discharge monitoring report.

Where necessary, the permittee may request approval of alternate methods or for alternative MDLs or PQLs for any approved analytical method. Approval of alternate laboratory MDLs or PQLs are not necessary if the laboratory reported MDLs and PQLs are less than or equal to the permit limit or the applicable water quality criteria, if any, stated in Chapter 62-302, F.A.C. Approval of an analytical method not included in the above-referenced list is not necessary if the analytical method is approved in accordance with 40 CFR 136 or deemed acceptable by the Department. [62-4.246, 62-160]

2. The permittee shall provide safe access points for obtaining representative influent and effluent samples which are required by this permit. [62-620.320(6)]
3. Monitoring requirements under this permit are effective on the first day of the second month following the effective date of the permit. Until such time, the permittee shall continue to monitor and report in accordance with previously effective permit requirements, if any. During the period of operation authorized by this permit, the permittee shall complete and submit to the Department Discharge Monitoring Reports (DMRs) in accordance with the frequencies specified by the REPORT type (i.e. monthly, quarterly, semiannual, annual, etc.) indicated on the DMR forms attached to this permit. Unless specified otherwise in this permit, monitoring results for each monitoring period shall be submitted in accordance with the associated DMR due dates below. DMRs shall be submitted for each required monitoring period including periods of no discharge.

REPORT Type on DMR	Monitoring Period	Submit by
Monthly	first day of month - last day of month	28 th day of following month
Quarterly	January 1 - March 31 April 1 - June 30 July 1 - September 30 October 1 - December 31	April 28 July 28 October 28 January 28
Semiannual	January 1 - June 30 July 1 - December 31	July 28 January 28
Annual	January 1 - December 31	January 28

The permittee shall use the electronic DMR system approved by the Department (EzDMR) and shall electronically submit the completed DMR forms using the DEP Business Portal at <http://www.fldepportal.com/go/>, unless the permittee has a waiver from the Department in accordance with 40 CFR 127.15. Reports shall be submitted to the Department by the twenty-eighth (28th) of the month following the month of operation.

[62-620.610(18)]

4. Unless specified otherwise in this permit, all reports and other information required by this permit, including 24-hour notifications, shall be submitted to or reported to, as appropriate, the Department's Northwest District Office at the address specified below:

Florida Department of Environmental Protection
Northwest District
160 W. Government Street
Suite 308
Pensacola, Florida 32502-5740

Phone Number - (850)595-8300

FAX Number - (850)595-8097

(All FAX copies and e-mails shall be followed by original copies.)

[62-620.305]

5. All reports and other information shall be signed in accordance with the requirements of Rule 62-620.305, F.A.C. *[62-620.305]*
6. If there is no discharge from the facility on a day when the facility would normally sample, the sample shall be collected on the day of the next discharge. *[62-620.320(6)]*

II. SLUDGE MANAGEMENT REQUIREMENTS

1. Section II is not applicable to this facility.

III. GROUND WATER REQUIREMENTS

1. Section III is not applicable to this facility.

IV. ADDITIONAL LAND APPLICATION REQUIREMENTS

1. Section IV is not applicable to this facility.

V. OPERATION AND MAINTENANCE REQUIREMENTS

1. During the period of operation authorized by this permit, the wastewater facilities shall be operated under the supervision of a person who is qualified by formal training and/or practical experience in the field of water pollution control. *[62-620.320(6)]*
2. The permittee shall maintain the following records and make them available for inspection on the site of the permitted facility.
 - a. Records of all compliance monitoring information, including all calibration and maintenance records and all original strip chart recordings for continuous monitoring instrumentation, including, if applicable, a copy of the laboratory certification showing the certification number of the laboratory, for at least three years from the date the sample or measurement was taken;
 - b. Copies of all reports required by the permit for at least three years from the date the report was prepared;
 - c. Records of all data, including reports and documents, used to complete the application for the permit for at least three years from the date the application was filed;
 - d. A copy of the current permit;
 - e. A copy of any required record drawings; and
 - f. Copies of the logs and schedules showing plant operations and equipment maintenance for three years from the date of the logs or schedules.

[62-620.350]

VI. SCHEDULES

1. The following improvement actions shall be completed according to the following schedule. The Best Management Practices (BMP) Plan shall be prepared and implemented in accordance with Part VII of this permit.

Improvement Action	Completion Date
1. Implement BMP Plan	Effective date of permit plus 18 months
2. Develop BMP Plan	Effective date of permit plus 6 months

[62-620.320(6)]

2. Prior to placing the new facilities into operation or any individual unit processes into operation for each phase of discharge operations, for any purpose other than testing for leaks and equipment operation, the permittee shall complete and submit to the Department DEP Form 62-620.910(12), Notification of Completion of Construction for Wastewater Facilities or Activities. [62-620.410(7)]
3. Within six months after a facility is placed in operation, the permittee shall provide written certification to the Department on Form 62-620.910(13) that record drawings pursuant to Chapter 62-620, F.A.C., are available at the location specified on the form. [62-620.410(6)]
4. The permittee is not authorized to discharge to waters of the state after the expiration date of this permit, unless:
 - a. The permittee has applied for renewal of this permit at least 180 days before the expiration date of this permit using the appropriate forms listed in Rule 62-620.910, F.A.C., and in the manner established in the Department of Environmental Protection Guide to Permitting Wastewater Facilities or Activities Under Chapter 62-620, F.A.C., including submittal of the appropriate processing fee set forth in Rule 62-4.050, F.A.C.; or
 - b. The permittee has made complete the application for renewal of this permit before the permit expiration date.

[62-620.335(1)-(4)]

VII. BEST MANAGEMENT PRACTICES/STORMWATER POLLUTION PREVENTION PLANS

1. The permittee shall develop and implement a Best Management Practices (BMP) which achieves the objectives and the specific requirements listed below. The permittee shall maintain the Plan at the facility and shall make the plan available to the Department upon request. The Plan shall be developed and implemented in accordance with the schedule contained in Part VI of this permit. [62-620.100(3)(m)]
2. Through implementation of the Best Management Practices (BMP), the permittee shall prevent or minimize the generation and the potential for the release of pollutants from the facility to the waters of the State through normal operations and ancillary activities. [62-620.100(3)(m)]
3. The permittee shall develop and amend the BMP Plan consistent with the following objectives for the control of pollutants.
 - a. The number and quantity of pollutants and the toxicity of effluent generated, discharged or potentially discharged at the facility shall be minimized by the permittee to the extent feasible by managing each influent waste stream in the most appropriate manner.
 - b. Under the BMP Plan, and any Standard Operating Procedures (SOPs) included in the Plan, the permittee shall ensure proper operation and maintenance of the treatment facility.
 - c. The permittee shall establish specific objectives for the control of pollutants by conducting the following evaluations.
 - (1) Each facility component or system shall be examined for its waste minimization opportunities and its potential for causing a release of significant amounts of pollutants to waters of the United States due to equipment failure, improper operation, and natural phenomena such as rain or adverse weather, etc. The examination shall include all normal operations and ancillary activities including but not limited to

material storage areas, plant site runoff, in-plant transfer, process and material handling areas, loading or unloading operations, spillage or leaks, sludge and waste disposal, or drainage from raw material storage, as applicable.

- (2) Where experience indicates a reasonable potential for equipment failure (e.g., a tank overflow or leakage), natural condition (e.g., precipitation), or other circumstances to result in significant amounts of pollutants reaching surface waters, the program should include a prediction of the direction, rate of flow and total quantity of pollutants which could be discharged from the facility as a result of each condition or circumstance.

[62-620.100(3)(m)]

4. The BMP Plan shall be consistent with the objectives in Part 3 above and the general guidance contained in the publication entitled Guidance Manual for Developing Best Management Practices (BMPs) (USEPA, 1993) or any subsequent revisions to the guidance document. The BMP Plan shall:
 - a. Be documented in narrative form, shall include any necessary plot plans, drawings or maps, and shall be developed in accordance with good engineering practices. The BMP Plan shall be organized and written with the following structure:
 - (1) Name and location of the facility.
 - (2) Statement of BMP Plan policy.
 - (3) Structure, functions, and procedures of the BMP Plan committee.
 - (4) Specific management practices and standard operating procedures to achieve the above objectives, including, but not limited to, the following:
 - (a) modification of equipment, facilities, technology, processes, and procedures,
 - (b) reformulation or redesign of products,
 - (c) substitution of materials, and
 - (d) improvement in management, inventory control, materials handling or general operational phases of the facility.
 - (5) Risk identification and assessment.
 - (6) Reporting of BMP Plan incidents.
 - (7) Materials compatibility.
 - (8) Good housekeeping.
 - (9) Preventative maintenance.
 - (10) Inspections and records.
 - (11) Security.
 - (12) Employee training.
 - b. Establish specific best management practices to meet the objectives identified in Part 3 of this section, addressing each component or system capable of generating or causing a release of significant amounts of pollutants, and identifying specific preventative or remedial measures to be implemented.

[62-620.100(3)(m)]

5. The BMP Plan shall be signed by the permittee or their duly authorized representative in accordance with Rule 62-620.305(2)(a) and (b), F.A.C. The Plan shall be reviewed by appropriate facility staff and management. Where required by Chapter 471 (P.E.) or Chapter 492 (P.G.) Florida Statutes, applicable portions of the Plan shall be signed and sealed by the professional(s) who prepared them.

The BMP Plan shall contain a written statement from corporate or facility management indicating management's commitment to the goals of the BMP Plan program. Such statements shall be publicized or made known to all facility employees. Management shall also provide training for the individuals responsible for implementing the BMP Plan. *[62-620.100(3)(m)]*

6. The permittee shall maintain a copy of the BMP Plan at the facility and shall make the plan available to the Department upon request. All offices of the permittee which are required to maintain a copy of the NPDES permit shall also maintain a copy of the BMP Plan. *[62-620.100(3)(m)]*
7. If following review by the Department, the BMP Plan is determined insufficient, the permittee will be notified that the Plan does not meet one or more of the minimum requirements of this Part. Upon such notification from the Department, the permittee shall amend the plan and shall submit to the Department a written certification that the requested changes have been made. Unless otherwise provided by the Department, the permittee shall have 30 days after such notification to make the changes necessary.

The permittee shall amend the BMP Plan whenever there is a change in the facility or in the operation of the facility which materially increases the generation of pollutants or their release or potential release to the receiving waters. The permittee shall also amend the Plan, as appropriate, when plant operations covered by the BMP Plan change. Any such changes to the Plan shall be consistent with the objectives and specific requirements listed above. All changes in the BMP Plan shall be reported to the Department in writing.
[62-620.100(3)(m)]

8. At any time, if the BMP Plan proves to be ineffective in achieving the general objective of preventing and minimizing the generation of pollutants and their release and potential release to the receiving waters and/or the specific requirements above, the permit and/or the BMP Plan shall be subject to modification to incorporate revised BMP Plan requirements. *[62-620.100(3)(m)]*

VIII. OTHER SPECIFIC CONDITIONS

1. Where required by Chapter 471 or Chapter 492, F.S., applicable portions of reports that must be submitted under this permit shall be signed and sealed by a professional engineer or a professional geologist, as appropriate.
[62-620.310(4)]
2. The permittee shall provide verbal notice to the Department's Northwest District Office as soon as practical after discovery of a sinkhole or other karst feature within an area for the management or application of wastewater, or wastewater sludges. The Permittee shall immediately implement measures appropriate to control the entry of contaminants, and shall detail these measures to the Department's Northwest District Office in a written report within 7 days of the sinkhole discovery. *[62-620.320(6)]*
3. Existing manufacturing, commercial, mining, and silvicultural wastewater facilities or activities that discharge into surface waters shall notify the Department as soon as they know or have reason to believe:
 - a. That any activity has occurred or will occur which would result in the discharge, on a routine or frequent basis, of any toxic pollutant which is not limited in the permit, if that discharge will exceed the highest of the following levels;
 - (1) One hundred micrograms per liter,
 - (2) Two hundred micrograms per liter for acrolein and acrylonitrile; five hundred micrograms per liter for 2, 4-dinitrophenol and for 2-methyl-4, 6-dinitrophenol; and one milligram per liter for antimony, or
 - (3) Five times the maximum concentration value reported for that pollutant in the permit application; or
 - b. That any activity has occurred or will occur which would result in any discharge, on a non-routine or infrequent basis, of a toxic pollutant which is not limited in the permit, if that discharge will exceed the highest of the following levels;
 - (1) Five hundred micrograms per liter,
 - (2) One milligram per liter for antimony, or
 - (3) Ten times the maximum concentration value reported for that pollutant in the permit application.

[62-620.625(1)]

IX. GENERAL CONDITIONS

1. The terms, conditions, requirements, limitations and restrictions set forth in this permit are binding and enforceable pursuant to Chapter 403, Florida Statutes. Any permit noncompliance constitutes a violation of Chapter 403, Florida Statutes, and is grounds for enforcement action, permit termination, permit revocation and reissuance, or permit revision. *[62-620.610(1)]*
2. This permit is valid only for the specific processes and operations applied for and indicated in the approved drawings or exhibits. Any unauthorized deviations from the approved drawings, exhibits, specifications or conditions of this permit constitutes grounds for revocation and enforcement action by the Department. *[62-620.610(2)]*
3. As provided in subsection 403.087(7), F.S., the issuance of this permit does not convey any vested rights or any exclusive privileges. Neither does it authorize any injury to public or private property or any invasion of personal rights, nor authorize any infringement of federal, state, or local laws or regulations. This permit is not a waiver of or approval of any other Department permit or authorization that may be required for other aspects of the total project which are not addressed in this permit. *[62-620.610(3)]*
4. This permit conveys no title to land or water, does not constitute state recognition or acknowledgment of title, and does not constitute authority for the use of submerged lands unless herein provided and the necessary title or leasehold interests have been obtained from the State. Only the Trustees of the Internal Improvement Trust Fund may express State opinion as to title. *[62-620.610(4)]*
5. This permit does not relieve the permittee from liability and penalties for harm or injury to human health or welfare, animal or plant life, or property caused by the construction or operation of this permitted source; nor does it allow the permittee to cause pollution in contravention of Florida Statutes and Department rules, unless specifically authorized by an order from the Department. The permittee shall take all reasonable steps to minimize or prevent any discharge, reuse of reclaimed water, or residuals use or disposal in violation of this permit which has a reasonable likelihood of adversely affecting human health or the environment. It shall not be a defense for a permittee in an enforcement action that it would have been necessary to halt or reduce the permitted activity in order to maintain compliance with the conditions of this permit. *[62-620.610(5)]*
6. If the permittee wishes to continue an activity regulated by this permit after its expiration date, the permittee shall apply for and obtain a new permit. *[62-620.610(6)]*
7. The permittee shall at all times properly operate and maintain the facility and systems of treatment and control, and related appurtenances, that are installed and used by the permittee to achieve compliance with the conditions of this permit. This provision includes the operation of backup or auxiliary facilities or similar systems when necessary to maintain or achieve compliance with the conditions of the permit. *[62-620.610(7)]*
8. This permit may be modified, revoked and reissued, or terminated for cause. The filing of a request by the permittee for a permit revision, revocation and reissuance, or termination, or a notification of planned changes or anticipated noncompliance does not stay any permit condition. *[62-620.610(8)]*
9. The permittee, by accepting this permit, specifically agrees to allow authorized Department personnel, including an authorized representative of the Department and authorized EPA personnel, when applicable, upon presentation of credentials or other documents as may be required by law, and at reasonable times, depending upon the nature of the concern being investigated, to:
 - a. Enter upon the permittee's premises where a regulated facility, system, or activity is located or conducted, or where records shall be kept under the conditions of this permit;
 - b. Have access to and copy any records that shall be kept under the conditions of this permit;
 - c. Inspect the facilities, equipment, practices, or operations regulated or required under this permit; and
 - d. Sample or monitor any substances or parameters at any location necessary to assure compliance with this permit or Department rules.

[62-620.610(9)]

10. In accepting this permit, the permittee understands and agrees that all records, notes, monitoring data, and other information relating to the construction or operation of this permitted source which are submitted to the Department may be used by the Department as evidence in any enforcement case involving the permitted source arising under the Florida Statutes or Department rules, except as such use is proscribed by Section 403.111, F.S., or Rule 62-620.302, F.A.C. Such evidence shall only be used to the extent that it is consistent with the Florida Rules of Civil Procedure and applicable evidentiary rules. *[62-620.610(10)]*
11. When requested by the Department, the permittee shall within a reasonable time provide any information required by law which is needed to determine whether there is cause for revising, revoking and reissuing, or terminating this permit, or to determine compliance with the permit. The permittee shall also provide to the Department upon request copies of records required by this permit to be kept. If the permittee becomes aware of relevant facts that were not submitted or were incorrect in the permit application or in any report to the Department, such facts or information shall be promptly submitted or corrections promptly reported to the Department. *[62-620.610(11)]*
12. Unless specifically stated otherwise in Department rules, the permittee, in accepting this permit, agrees to comply with changes in Department rules and Florida Statutes after a reasonable time for compliance; provided, however, the permittee does not waive any other rights granted by Florida Statutes or Department rules. A reasonable time for compliance with a new or amended surface water quality standard, other than those standards addressed in Rule 62-302.500, F.A.C., shall include a reasonable time to obtain or be denied a mixing zone for the new or amended standard. *[62-620.610(12)]*
13. The permittee, in accepting this permit, agrees to pay the applicable regulatory program and surveillance fee in accordance with Rule 62-4.052, F.A.C. *[62-620.610(13)]*
14. This permit is transferable only upon Department approval in accordance with Rule 62-620.340, F.A.C. The permittee shall be liable for any noncompliance of the permitted activity until the transfer is approved by the Department. *[62-620.610(14)]*
15. The permittee shall give the Department written notice at least 60 days before inactivation or abandonment of a wastewater facility or activity and shall specify what steps will be taken to safeguard public health and safety during and following inactivation or abandonment. *[62-620.610(15)]*
16. The permittee shall apply for a revision to the Department permit in accordance with Rules 62-620.300, F.A.C., and the Department of Environmental Protection Guide to Permitting Wastewater Facilities or Activities Under Chapter 62-620, F.A.C., at least 90 days before construction of any planned substantial modifications to the permitted facility is to commence or with Rule 62-620.325(2), F.A.C., for minor modifications to the permitted facility. A revised permit shall be obtained before construction begins except as provided in Rule 62-620.300, F.A.C. *[62-620.610(16)]*
17. The permittee shall give advance notice to the Department of any planned changes in the permitted facility or activity which may result in noncompliance with permit requirements. The permittee shall be responsible for any and all damages which may result from the changes and may be subject to enforcement action by the Department for penalties or revocation of this permit. The notice shall include the following information:
 - a. A description of the anticipated noncompliance;
 - b. The period of the anticipated noncompliance, including dates and times; and
 - c. Steps being taken to prevent future occurrence of the noncompliance.*[62-620.610(17)]*

18. Sampling and monitoring data shall be collected and analyzed in accordance with Rule 62-4.246 and Chapters 62-160, 62-600, and 62-610, F.A.C., and 40 CFR 136, as appropriate.
 - a. Monitoring results shall be reported at the intervals specified elsewhere in this permit and shall be reported on a Discharge Monitoring Report (DMR), DEP Form 62-620.910(10), or as specified elsewhere in the permit.
 - b. If the permittee monitors any contaminant more frequently than required by the permit, using Department approved test procedures, the results of this monitoring shall be included in the calculation and reporting of the data submitted in the DMR.
 - c. Calculations for all limitations which require averaging of measurements shall use an arithmetic mean unless otherwise specified in this permit.
 - d. Except as specifically provided in Rule 62-160.300, F.A.C., any laboratory test required by this permit shall be performed by a laboratory that has been certified by the Department of Health Environmental Laboratory Certification Program (DOH ELCP). Such certification shall be for the matrix, test method and analyte(s) being measured to comply with this permit. For domestic wastewater facilities, testing for parameters listed in Rule 62-160.300(4), F.A.C., shall be conducted under the direction of a certified operator.
 - e. Field activities including on-site tests and sample collection shall follow the applicable standard operating procedures described in DEP-SOP-001/01 adopted by reference in Chapter 62-160, F.A.C.
 - f. Alternate field procedures and laboratory methods may be used where they have been approved in accordance with Rules 62-160.220, and 62-160.330, F.A.C.

[62-620.610(18)]
19. Reports of compliance or noncompliance with, or any progress reports on, interim and final requirements contained in any compliance schedule detailed elsewhere in this permit shall be submitted no later than 14 days following each schedule date. *[62-620.610(19)]*
20. The permittee shall report to the Department's Northwest District Office any noncompliance which may endanger health or the environment. Any information shall be provided orally within 24 hours from the time the permittee becomes aware of the circumstances. A written submission shall also be provided within five days of the time the permittee becomes aware of the circumstances. The written submission shall contain: a description of the noncompliance and its cause; the period of noncompliance including exact dates and time, and if the noncompliance has not been corrected, the anticipated time it is expected to continue; and steps taken or planned to reduce, eliminate, and prevent recurrence of the noncompliance.
 - a. The following shall be included as information which must be reported within 24 hours under this condition:
 - (1) Any unanticipated bypass which causes any reclaimed water or effluent to exceed any permit limitation or results in an unpermitted discharge,
 - (2) Any upset which causes any reclaimed water or the effluent to exceed any limitation in the permit,
 - (3) Violation of a maximum daily discharge limitation for any of the pollutants specifically listed in the permit for such notice, and
 - (4) Any unauthorized discharge to surface or ground waters.
 - b. Oral reports as required by this subsection shall be provided as follows:
 - (1) For unauthorized releases or spills of treated or untreated wastewater reported pursuant to subparagraph (a)4. that are in excess of 1,000 gallons per incident, or where information indicates that public health or the environment will be endangered, oral reports shall be provided to the STATE WATCH OFFICE TOLL FREE NUMBER (800) 320-0519, as soon as practical, but no later than 24 hours from the time the permittee becomes aware of the discharge. The permittee, to the extent known, shall provide the following information to the State Watch Office:
 - (a) Name, address, and telephone number of person reporting;
 - (b) Name, address, and telephone number of permittee or responsible person for the discharge;

- (c) Date and time of the discharge and status of discharge (ongoing or ceased);
 - (d) Characteristics of the wastewater spilled or released (untreated or treated, industrial or domestic wastewater);
 - (e) Estimated amount of the discharge;
 - (f) Location or address of the discharge;
 - (g) Source and cause of the discharge;
 - (h) Whether the discharge was contained on-site, and cleanup actions taken to date;
 - (i) Description of area affected by the discharge, including name of water body affected, if any; and
 - (j) Other persons or agencies contacted.
- (2) Oral reports, not otherwise required to be provided pursuant to subparagraph b.1 above, shall be provided to the Department's Northwest District Office within 24 hours from the time the permittee becomes aware of the circumstances.
- c. If the oral report has been received within 24 hours, the noncompliance has been corrected, and the noncompliance did not endanger health or the environment, the Department's Northwest District Office shall waive the written report.

[62-620.610(20)]

21. The permittee shall report all instances of noncompliance not reported under Permit Conditions IX. 17, 18 or 19 of this permit at the time monitoring reports are submitted. This report shall contain the same information required by Permit Condition IX.20 of this permit. *[62-620.610(21)]*

22. Bypass Provisions.

- a. "Bypass" means the intentional diversion of waste streams from any portion of a treatment works.
- b. Bypass is prohibited, and the Department may take enforcement action against a permittee for bypass, unless the permittee affirmatively demonstrates that:
 - (1) Bypass was unavoidable to prevent loss of life, personal injury, or severe property damage; and
 - (2) There were no feasible alternatives to the bypass, such as the use of auxiliary treatment facilities, retention of untreated wastes, or maintenance during normal periods of equipment downtime. This condition is not satisfied if adequate back-up equipment should have been installed in the exercise of reasonable engineering judgment to prevent a bypass which occurred during normal periods of equipment downtime or preventive maintenance; and
 - (3) The permittee submitted notices as required under Permit Condition IX. 22. c. of this permit.
- c. If the permittee knows in advance of the need for a bypass, it shall submit prior notice to the Department, if possible at least 10 days before the date of the bypass. The permittee shall submit notice of an unanticipated bypass within 24 hours of learning about the bypass as required in Permit Condition IX. 20. of this permit. A notice shall include a description of the bypass and its cause; the period of the bypass, including exact dates and times; if the bypass has not been corrected, the anticipated time it is expected to continue; and the steps taken or planned to reduce, eliminate, and prevent recurrence of the bypass.
- d. The Department shall approve an anticipated bypass, after considering its adverse effect, if the permittee demonstrates that it will meet the three conditions listed in Permit Condition IX. 22. b.(1) through (3) of this permit.
- e. A permittee may allow any bypass to occur which does not cause reclaimed water or effluent limitations to be exceeded if it is for essential maintenance to assure efficient operation. These bypasses are not subject to the provisions of Permit Condition IX. 22. b. through d. of this permit.

[62-620.610(22)]

23. Upset Provisions.

- a. "Upset" means an exceptional incident in which there is unintentional and temporary noncompliance with technology-based effluent limitations because of factors beyond the reasonable control of the permittee.
 - (1) An upset does not include noncompliance caused by operational error, improperly designed treatment facilities, inadequate treatment facilities, lack of preventive maintenance, careless or improper operation.
 - (2) An upset constitutes an affirmative defense to an action brought for noncompliance with technology based permit effluent limitations if the requirements of upset provisions of Rule 62-620.610, F.A.C., are met.
- b. A permittee who wishes to establish the affirmative defense of upset shall demonstrate, through properly signed contemporaneous operating logs, or other relevant evidence that:
 - (1) An upset occurred and that the permittee can identify the cause(s) of the upset;
 - (2) The permitted facility was at the time being properly operated;
 - (3) The permittee submitted notice of the upset as required in Permit Condition IX.5. of this permit; and
 - (4) The permittee complied with any remedial measures required under Permit Condition IX. 5. of this permit.
- c. In any enforcement proceeding, the burden of proof for establishing the occurrence of an upset rests with the permittee.
- d. Before an enforcement proceeding is instituted, no representation made during the Department review of a claim that noncompliance was caused by an upset is final agency action subject to judicial review.

[62-620.610(23)]

Executed in Orlando, Florida.

STATE OF FLORIDA DEPARTMENT OF ENVIRONMENTAL PROTECT



Emile D. Hamilton
District Director

Attachment(s):
Discharge Monitoring Report
DMR D-001 Monthly
DMR D-002 Monthly
DMR Part B Daily
DMR Instructions
Site Map
Phase(s) 1-6 Process Flow Diagrams

DEPARTMENT OF ENVIRONMENTAL PROTECTION DISCHARGE MONITORING REPORT - PART A

When Completed submit this report to: <http://www.fldeportal.com/go/>

PERMITTEE NAME: North Florida Rock LLC
MAILING ADDRESS: 5160 Vermont Rd
Marianna, Florida 32448-7473

FACILITY: North Florida Rock
LOCATION: 5160 Vermont Rd
Marianna, FL 32448-7473

COUNTY: Jackson
OFFICE: Northwest District Branch (Panama City)

PERMIT NUMBER: FL0980722-001-IW3S

LIMIT:
CLASS SIZE:
MONITORING GROUP NUMBER:
MONITORING GROUP DESCRIPTION:
RE-SUBMITTED DMR: ☐
NO DISCHARGE FROM SITE: ☐
MONITORING PERIOD From: _____ To: _____

Final
MI
D-001
un-named intermittent creek that terminates into swallet

REPORT FREQUENCY: Monthly
PROGRAM: Industrial

Parameter		Quantity or Loading		Units	Quality or Concentration			Units	No. Ex.	Frequency of Analysis	Sample Type
Flow	Sample Measurement										
PARM Code 50050 Y Mon. Site No. FLW-01	Permit Requirement		Report (An.Avg.)	MGD						5 Days/Week	Calculated
Flow	Sample Measurement										
PARM Code 50050 1 Mon. Site No. FLW-01	Permit Requirement		Report (Mo.Avg.)	MGD						5 Days/Week	Calculated
Oxygen, Dissolved Percent Saturation	Sample Measurement										
PARM Code 00301 1 Mon. Site No. EFF-01	Permit Requirement					90 (Mo.Total)	% smpcpln			5 Days/Week	Meter
Turbidity	Sample Measurement										
PARM Code 00070 1 Mon. Site No. EFF-01	Permit Requirement					29 (Max.)	NTU			Weekly	Meter
pH	Sample Measurement										
PARM Code 00400 1 Mon. Site No. EFF-01	Permit Requirement				6.0 (Min.)	8.5 (Max.)	s.u.			Weekly	Meter
Specific Conductance	Sample Measurement										
PARM Code 00095 1 Mon. Site No. EFF-01	Permit Requirement					1275 (Max.)	umhos/cm			Weekly	Meter

I certify under penalty of law that this document and all attachments were prepared under my direction or supervision in accordance with a system designed to assure that qualified personnel properly gather and evaluate the information submitted. Based on my inquiry of the person or persons who manage the system, or those persons directly responsible for gathering the information, the information submitted is, to the best of my knowledge and belief, true, accurate, and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment for knowing violations.

NAME/TITLE OF PRINCIPAL EXECUTIVE OFFICER OR AUTHORIZED AGENT	SIGNATURE OF PRINCIPAL EXECUTIVE OFFICER OR AUTHORIZED AGENT	TELEPHONE NO	DATE (mm/dd/yyyy)

COMMENT AND EXPLANATION OF ANY VIOLATIONS (Reference all attachments here):

DISCHARGE MONITORING REPORT - PART A (Continued)

FACILITY: North Florida Rock

MONITORING GROUP NUMBER: D-001

PERMIT NUMBER: FL0980722-001-IW3S

MONITORING PERIOD From: _____ To: _____

Parameter		Quantity or Loading		Units	Quality or Concentration			Units	No. Ex.	Frequency of Analysis	Sample Type
Solids, Total Suspended	Sample Measurement										
PARM Code 00530 Y Mon. Site No. EFF-01	Permit Requirement					20 (An.Avg.)		mg/L		Weekly	Grab
Solids, Total Suspended	Sample Measurement										
PARM Code 00530 1 Mon. Site No. EFF-01	Permit Requirement				60 (Max.)	45 (Max.Wk.Avg.)	30 (Mo.Avg.)	mg/L		Weekly	Grab
Nitrogen, Total	Sample Measurement										
PARM Code 00600 Y Mon. Site No. EFF-01	Permit Requirement					Report (An.Avg.)		mg/L		Monthly	Grab
Nitrogen, Total	Sample Measurement										
PARM Code 00600 1 Mon. Site No. EFF-01	Permit Requirement						Report (Mo.Avg.)	mg/L		Monthly	Grab
Phosphorus, Total (as P)	Sample Measurement										
PARM Code 00665 Y Mon. Site No. EFF-01	Permit Requirement					Report (An.Avg.)		mg/L		Monthly	Grab
Phosphorus, Total (as P)	Sample Measurement										
PARM Code 00665 1 Mon. Site No. EFF-01	Permit Requirement						Report (Mo.Avg.)	mg/L		Monthly	Grab
Chlorophyll a	Sample Measurement										
PARM Code 32230 Y Mon. Site No. EFF-01	Permit Requirement					Report (An.Avg.)		ug/L		Monthly	Grab
Chlorophyll a	Sample Measurement										
PARM Code 32230 1 Mon. Site No. EFF-01	Permit Requirement						Report (Mo.Avg.)	ug/L		Monthly	Grab

DEPARTMENT OF ENVIRONMENTAL PROTECTION DISCHARGE MONITORING REPORT - PART A

When Completed submit this report to: <http://www.fldeportal.com/go/>

PERMITTEE NAME: North Florida Rock LLC
MAILING ADDRESS: 5160 Vermont Rd
Marianna, Florida 32448-7473

FACILITY: North Florida Rock
LOCATION: 5160 Vermont Rd
Marianna, FL 32448-7473

COUNTY: Jackson
OFFICE: Northwest District Branch (Panama City)

PERMIT NUMBER: FL0980722-001-IW3S

LIMIT: Final
CLASS SIZE: MI
MONITORING GROUP NUMBER: D-002
MONITORING GROUP DESCRIPTION: un-named tributary to Chipola River
RE-SUBMITTED DMR: ☐
NO DISCHARGE FROM SITE: ☐
MONITORING PERIOD From: _____ To: _____

REPORT FREQUENCY: Monthly
PROGRAM: Industrial

Parameter		Quantity or Loading		Units	Quality or Concentration			Units	No. Ex.	Frequency of Analysis	Sample Type
Flow	Sample Measurement										
PARM Code 50050 Y Mon. Site No. FLW-02	Permit Requirement		Report (An.Avg.)	MGD						5 Days/Week	Calculated
Flow	Sample Measurement										
PARM Code 50050 1 Mon. Site No. FLW-02	Permit Requirement		Report (Mo.Avg.)	MGD						5 Days/Week	Calculated
Oxygen, Dissolved Percent Saturation	Sample Measurement										
PARM Code 00301 1 Mon. Site No. EFF-02	Permit Requirement						90 (Mo.Total)	% smpcpln		5 Days/Week	Meter
Turbidity	Sample Measurement										
PARM Code 00070 1 Mon. Site No. EFF-02	Permit Requirement						29 (Max.)	NTU		Weekly	Meter
pH	Sample Measurement										
PARM Code 00400 1 Mon. Site No. EFF-02	Permit Requirement				6.0 (Min.)		8.5 (Max.)	s.u.		Weekly	Meter
Specific Conductance	Sample Measurement										
PARM Code 00095 1 Mon. Site No. EFF-02	Permit Requirement						1275 (Max.)	umhos/cm		Weekly	Meter

I certify under penalty of law that this document and all attachments were prepared under my direction or supervision in accordance with a system designed to assure that qualified personnel properly gather and evaluate the information submitted. Based on my inquiry of the person or persons who manage the system, or those persons directly responsible for gathering the information, the information submitted is, to the best of my knowledge and belief, true, accurate, and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment for knowing violations.

NAME/TITLE OF PRINCIPAL EXECUTIVE OFFICER OR AUTHORIZED AGENT	SIGNATURE OF PRINCIPAL EXECUTIVE OFFICER OR AUTHORIZED AGENT	TELEPHONE NO	DATE (mm/dd/yyyy)

COMMENT AND EXPLANATION OF ANY VIOLATIONS (Reference all attachments here):

DISCHARGE MONITORING REPORT - PART A (Continued)

FACILITY: North Florida Rock

MONITORING GROUP NUMBER: D-002

PERMIT NUMBER: FL0980722-001-IW3S

MONITORING PERIOD From: _____ To: _____

Parameter		Quantity or Loading		Units	Quality or Concentration			Units	No. Ex.	Frequency of Analysis	Sample Type
Solids, Total Suspended	Sample Measurement										
PARM Code 00530 Y Mon. Site No. EFF-02	Permit Requirement					20 (An.Avg.)		mg/L		Weekly	Grab
Solids, Total Suspended	Sample Measurement										
PARM Code 00530 1 Mon. Site No. EFF-02	Permit Requirement				60 (Max.)	45 (Max.Wk.Avg.)	30 (Mo.Avg.)	mg/L		Weekly	Grab
Nitrogen, Total	Sample Measurement										
PARM Code 00600 Y Mon. Site No. EFF-02	Permit Requirement					Report (An.Avg.)		mg/L		Monthly	Grab
Nitrogen, Total	Sample Measurement										
PARM Code 00600 1 Mon. Site No. EFF-02	Permit Requirement						Report (Mo.Avg.)	mg/L		Monthly	Grab
Phosphorus, Total (as P)	Sample Measurement										
PARM Code 00665 Y Mon. Site No. EFF-02	Permit Requirement					Report (An.Avg.)		mg/L		Monthly	Grab
Phosphorus, Total (as P)	Sample Measurement										
PARM Code 00665 1 Mon. Site No. EFF-02	Permit Requirement						Report (Mo.Avg.)	mg/L		Monthly	Grab
Chlorophyll a	Sample Measurement										
PARM Code 32230 Y Mon. Site No. EFF-02	Permit Requirement					Report (An.Avg.)		ug/L		Monthly	Grab
Chlorophyll a	Sample Measurement										
PARM Code 32230 1 Mon. Site No. EFF-02	Permit Requirement						Report (Mo.Avg.)	ug/L		Monthly	Grab

DAILY SAMPLE RESULTS - PART B

Permit Number: FL0980722-001-IW3S Facility: North Florida Rock
Monitoring Period From: To:

	Flow MGD	Oxygen, Dissolved Percent Saturation %	Turbidity NTU	pH s.u.	Specific Conductance umhos/cm	Solids, Total Suspended mg/L	Nitrogen, Total mg/L	Phosphorus, Total (as P) mg/L	Chlorophyll a ug/L
Code	50050	00301	00070	00400	00095	00530	00600	00665	32230
Mon. Site	FLW-01	EFF-01	EFF-01	EFF-01	EFF-01	EFF-01	EFF-01	EFF-01	EFF-01
1									
2									
3									
4									
5									
6									
7									
8									
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20									
21									
22									
23									
24									
25									
26									
27									
28									
29									
30									
31									
Total									
Mo. Avg.									

DAILY SAMPLE RESULTS - PART B

Permit Number: FL0980722-001-IW3S

Facility: North Florida Rock

Monitoring Period From: _____ To: _____

	Flow MGD	Oxygen, Dissolved Percent Saturation %	Turbidity NTU	pH s.u.	Specific Conductance umhos/cm	Solids, Total Suspended mg/L	Nitrogen, Total mg/L	Phosphorus, Total (as P) mg/L	Chlorophyll a ug/L
Code	50050	00301	00070	00400	00095	00530	00600	00665	32230
Mon. Site	FLW-02	EFF-02	EFF-02	EFF-02	EFF-02	EFF-02	EFF-02	EFF-02	EFF-02
1									
2									
3									
4									
5									
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23									
24									
25									
26									
27									
28									
29									
30									
31									
Total									
Mo. Avg.									

INSTRUCTIONS FOR COMPLETING THE WASTEWATER DISCHARGE MONITORING REPORT

Read these instructions before completing the DMR. Hard copies and/or electronic copies of the required parts of the DMR were provided with the permit. All required information shall be completed in full and typed or printed in ink. A signed, original DMR shall be mailed to the address printed on the DMR by the 28th of the month following the monitoring period. Facilities who submit their DMR(s) electronically through eDMR do not need to submit a hardcopy DMR. The DMR shall not be submitted before the end of the monitoring period.

The DMR consists of three parts--A, B, and D--all of which may or may not be applicable to every facility. Facilities may have one or more Part A's for reporting effluent or reclaimed water data. All domestic wastewater facilities will have a Part B for reporting daily sample results. Part D is used for reporting ground water monitoring well data.

When results are not available, the following codes should be used on parts A and D of the DMR and an explanation provided where appropriate. Note: Codes used on Part B for raw data are different.

CODE	DESCRIPTION/INSTRUCTIONS
ANC	Analysis not conducted.
DRY	Dry Well
FLD	Flood disaster.
IFS	Insufficient flow for sampling.
LS	Lost sample.
MNR	Monitoring not required this period.

CODE	DESCRIPTION/INSTRUCTIONS
NOD	No discharge from/to site.
OPS	Operations were shutdown so no sample could be taken.
OTH	Other. Please enter an explanation of why monitoring data were not available.
SEF	Sampling equipment failure.

When reporting analytical results that fall below a laboratory's reported method detection limits or practical quantification limits, the following instructions should be used, unless indicated otherwise in the permit or on the DMR:

1. Results greater than or equal to the PQL shall be reported as the measured quantity.
2. Results less than the PQL and greater than or equal to the MDL shall be reported as the laboratory's MDL value. These values shall be deemed equal to the MDL when necessary to calculate an average for that parameter and when determining compliance with permit limits.
3. Results less than the MDL shall be reported by entering a less than sign (" $<$ ") followed by the laboratory's MDL value, e.g. < 0.001 . A value of one-half the MDL or one-half the effluent limit, whichever is lower, shall be used for that sample when necessary to calculate an average for that parameter. Values less than the MDL are considered to demonstrate compliance with an effluent limitation.

PART A -DISCHARGE MONITORING REPORT (DMR)

Part A of the DMR is comprised of one or more sections, each having its own header information. Facility information is preprinted in the header as well as the monitoring group number, whether the limits and monitoring requirements are interim or final, and the required submittal frequency (e.g. monthly, annually, quarterly, etc.). Submit Part A based on the required reporting frequency in the header and the instructions shown in the permit. The following should be completed by the permittee or authorized representative:

Resubmitted DMR: Check this box if this DMR is being re-submitted because there was information missing from or information that needed correction on a previously submitted DMR. The information that is being revised should be clearly noted on the re-submitted DMR (e.g. highlight, circle, etc.)

No Discharge From Site: Check this box if no discharge occurs and, as a result, there are no data or codes to be entered for all of the parameters on the DMR for the entire monitoring group number; however, if the monitoring group includes other monitoring locations (e.g., influent sampling), the "NOD" code should be used to individually denote those parameters for which there was no discharge.

Monitoring Period: Enter the month, day, and year for the first and last day of the monitoring period (i.e. the month, the quarter, the year, etc.) during which the data on this report were collected and analyzed.

Sample Measurement: Before filling in sample measurements in the table, check to see that the data collected correspond to the limit indicated on the DMR (i.e. interim or final) and that the data correspond to the monitoring group number in the header. Enter the data or calculated results for each parameter on this row in the non-shaded area above the limit. Be sure the result being entered corresponds to the appropriate statistical base code (e.g. annual average, monthly average, single sample maximum, etc.) and units. Data qualifier codes are not to be reported on Part A.

No. Ex.: Enter the number of sample measurements during the monitoring period that exceeded the permit limit for each parameter in the non-shaded area. If none, enter zero.

Frequency of Analysis: The shaded areas in this column contain the minimum number of times the measurement is required to be made according to the permit. Enter the actual number of times the measurement was made in the space above the shaded area.

Sample Type: The shaded areas in this column contain the type of sample (e.g. grab, composite, continuous) required by the permit. Enter the actual sample type that was taken in the space above the shaded area.

Signature: This report must be signed in accordance with Rule 62-620.305, F.A.C. Type or print the name and title of the signing official. Include the telephone number where the official may be reached in the event there are questions concerning this report. Enter the date when the report is signed.

Comment and Explanation of Any Violations: Use this area to explain any exceedances, any upset or by-pass events, or other items which require explanation. If more space is needed, reference all attachments in this area.

PART B - DAILY SAMPLE RESULTS

Monitoring Period: Enter the month, day, and year for the first and last day of the monitoring period (i.e. the month, the quarter, the year, etc.) during which the data on this report were collected and analyzed.

Daily Monitoring Results: Transfer all analytical data from your facility's laboratory or a contract laboratory's data sheets for all day(s) that samples were collected. Record the data in the units indicated. Table 1 in Chapter 62-160, F.A.C., contains a complete list of all the data qualifier codes that your laboratory may use when reporting analytical results. However, when transferring numerical results onto Part B of the DMR, only the following data qualifier codes should be used and an explanation provided where appropriate.

CODE	DESCRIPTION/INSTRUCTIONS
<	The compound was analyzed for but not detected.
A	Value reported is the mean (average) of two or more determinations.
J	Estimated value, value not accurate.
Q	Sample held beyond the actual holding time.
Y	Laboratory analysis was from an unpreserved or improperly preserved sample.

To calculate the monthly average, add each reported value to get a total. For flow, divide this total by the number of days in the month. For all other parameters, divide the total by the number of observations.

Plant Staffing: List the name, certificate number, and class of all state certified operators operating the facility during the monitoring period. Use additional sheets as necessary.

PART D - GROUND WATER MONITORING REPORT

Monitoring Period: Enter the month, day, and year for the first and last day of the monitoring period (i.e. the month, the quarter, the year, etc.) during which the data on this report were collected and analyzed.

Date Sample Obtained: Enter the date the sample was taken. Also, check whether or not the well was purged before sampling.

Time Sample Obtained: Enter the time the sample was taken.

Sample Measurement: Record the results of the analysis. If the result was below the minimum detection limit, indicate that. Data qualifier codes are not to be reported on Part D.

Detection Limits: Record the detection limits of the analytical methods used.

Analysis Method: Indicate the analytical method used. Record the method number from Chapter 62-160 or Chapter 62-601, F.A.C., or from other sources.

Sampling Equipment Used: Indicate the procedure used to collect the sample (e.g. airlift, bucket/bailer, centrifugal pump, etc.)

Samples Filtered: Indicate whether the sample obtained was filtered by laboratory (L), filtered in field (F), or unfiltered (N).

Signature: This report must be signed in accordance with Rule 62-620.305, F.A.C. Type or print the name and title of the signing official. Include the telephone number where the official may be reached in the event there are questions concerning this report. Enter the date when the report is signed.

Comments and Explanation: Use this space to make any comments on or explanations of results that are unexpected. If more space is needed, reference all attachments in this area.

SPECIAL INSTRUCTIONS FOR LIMITED WET WEATHER DISCHARGES

Flow (Limited Wet Weather Discharge): Enter the measured average flow rate during the period of discharge or divide gallons discharged by duration of discharge (converted into days). Record in million gallons per day (MGD).

Flow (Upstream): Enter the average flow rate in the receiving stream upstream from the point of discharge for the period of discharge. The average flow rate can be calculated based on two measurements; one made at the start and one made at the end of the discharge period. Measurements are to be made at the upstream gauging station described in the permit.

Actual Stream Dilution Ratio: To calculate the Actual Stream Dilution Ratio, divide the average upstream flow rate by the average discharge flow rate. Enter the Actual Stream Dilution Ratio accurate to the nearest 0.1.

No. of Days the SDF > Stream Dilution Ratio: For each day of discharge, compare the minimum Stream Dilution Factor (SDF) from the permit to the calculated Stream Dilution Ratio. On Part B of the DMR, enter an asterisk (*) if the SDF is greater than the Stream Dilution Ratio on any day of discharge. On Part A of the DMR, add up the days with an "*" and record the total number of days the Stream Dilution Factor was greater than the Stream Dilution Ratio.

CBOD₅: Enter the average CBOD₅ of the reclaimed water discharged during the period shown in duration of discharge.

TKN: Enter the average TKN of the reclaimed water discharged during the period shown in duration of discharge.

Actual Rainfall: Enter the actual rainfall for each day on Part B. Enter the actual cumulative rainfall to date for this calendar year and the actual total monthly rainfall on Part A. The cumulative rainfall to date for this calendar year is the total amount of rain, in inches, that has been recorded since January 1 of the current year through the month for which this DMR contains data.

Rainfall During Average Rainfall Year: On Part A, enter the total monthly rainfall during the average rainfall year and the cumulative rainfall for the average rainfall year. The cumulative rainfall for the average rainfall year is the amount of rain, in inches, which fell during the average rainfall year from January through the month for which this DMR contains data.

No. of Days LWWD Activated During Calendar Year: Enter the cumulative number of days that the limited wet weather discharge was activated since January 1 of the current year.

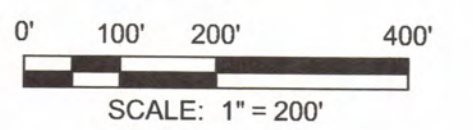
Reason for Discharge: Attach to the DMR a brief explanation of the factors contributing to the need to activate the limited wet weather discharge.

SEAL

CHRIS SHORTT, P.E. 78424
EB 0008794

PRELIMINARY DOCUMENTS
NOT FOR CONSTRUCTION

SCALE



REVISIONS

[illegible]

NO.	DESCRIPTION	DATE
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DRAWN BY B. ROCHER

APPROVED BY _____

— CHECKED BY C.SHORTT

DATE FEBRUARY 2017

TITLE

LINE DIAGRAM

PROJECT NO. 50084478

SHEET NO.



March 16, 2017 (08:45:13 EST)
K:\50084478\NORTH FL ROCK MINING EXP\EXP\CIVIL3\FOLDER\EXHIBITS\NPDES PERMIT\50084478_EXHIBIT 1_DWG BROCHER

**NORTH FLORIDA ROCK
MINING EXPANSION**

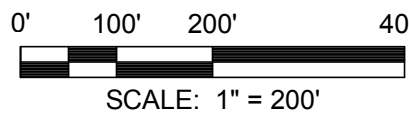
JACKSON COUNTY
FLORIDA

SEAL

CHRIS SHORTT, P.E. 78424
EB 0008794

PRELIMINARY DOCUMENTS
NOT FOR CONSTRUCTION

SCALE



REVISIONS

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NO.	DESCRIPTION	DATE
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DRAWN BY B. ROCHER

APPROVED BY _____

— CHECKED BY C.SHORTT

DATE AUGUST 2017

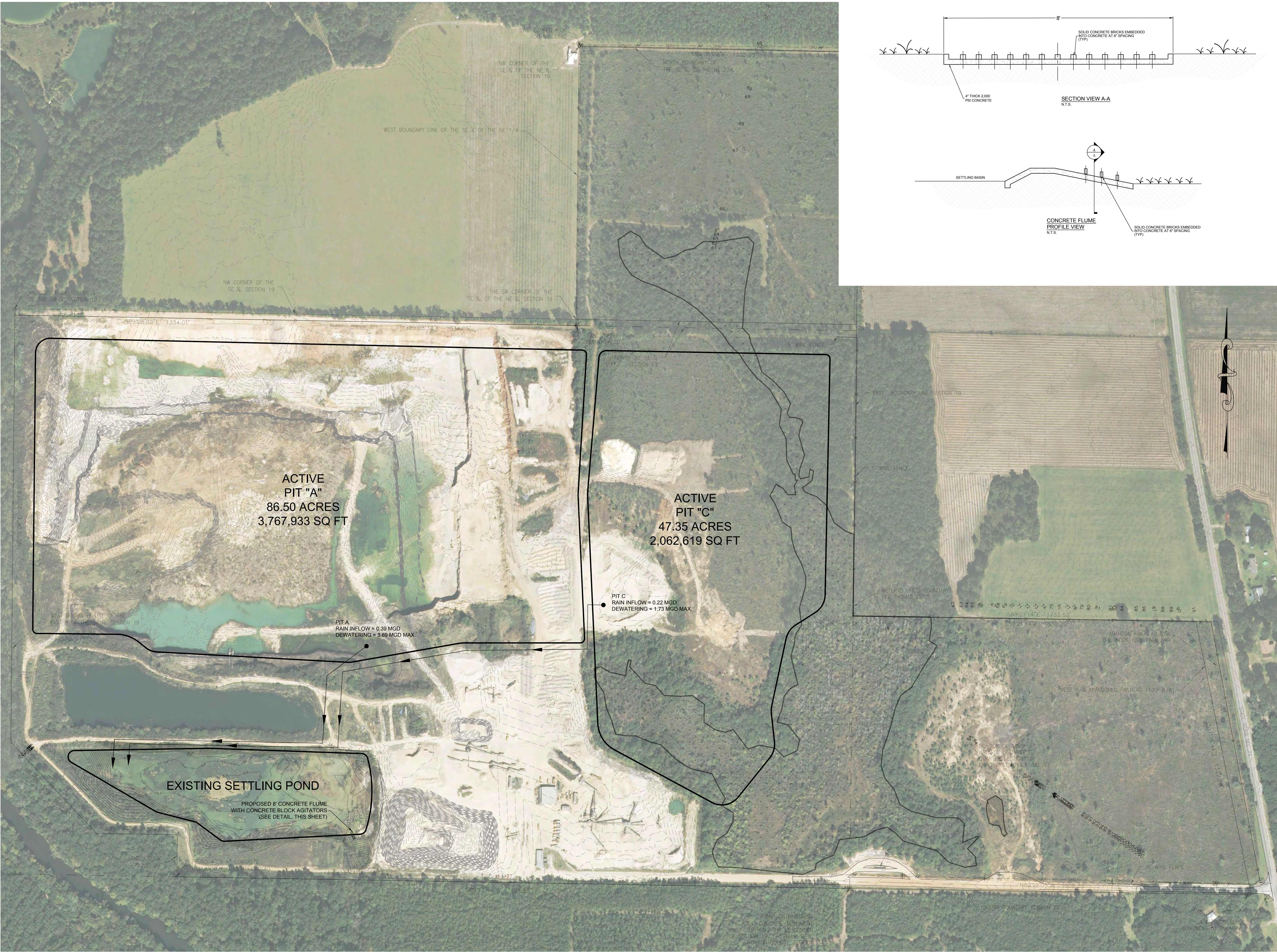
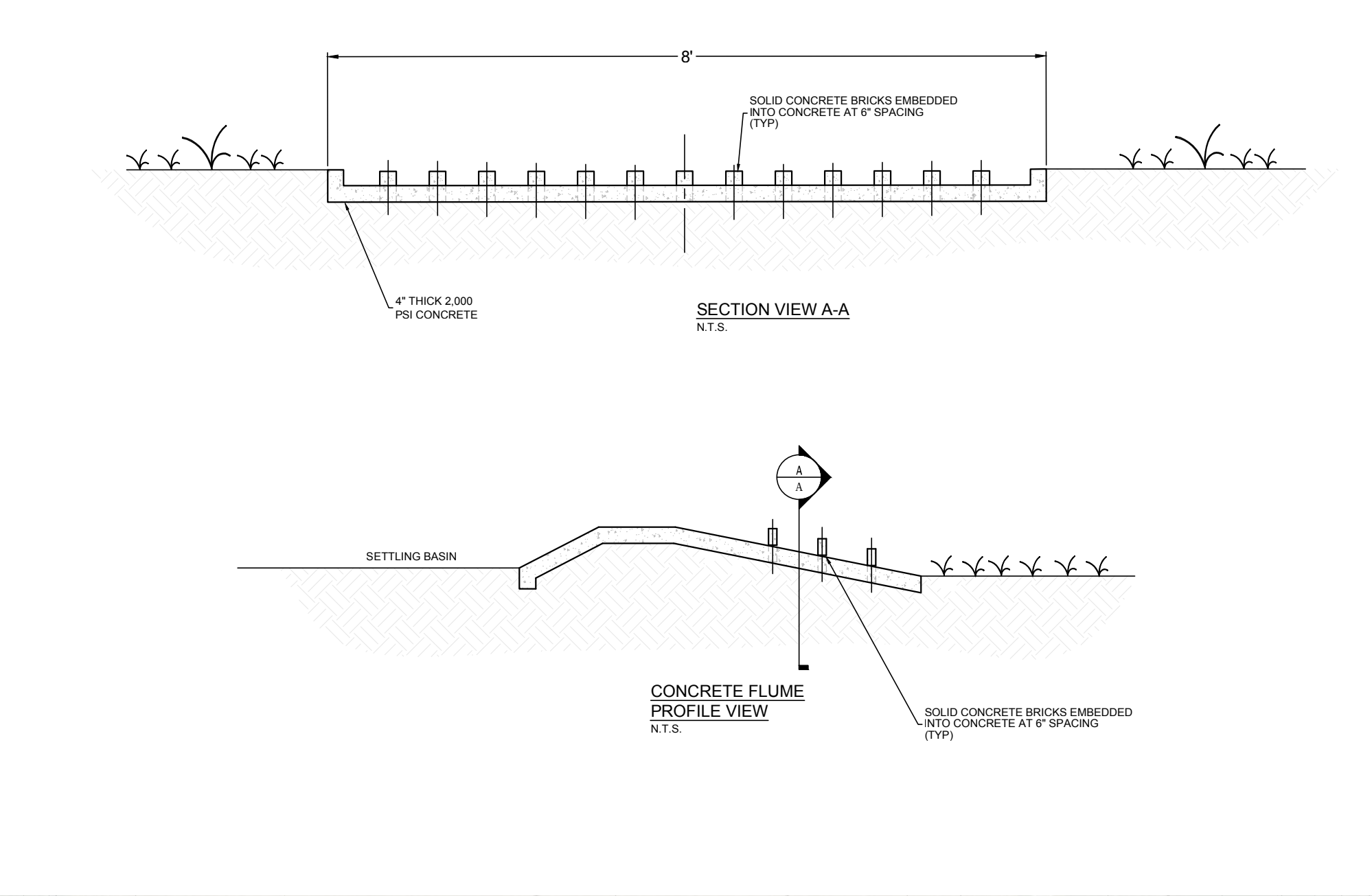
TITLE

CURRENT PHASE LINE DIAGRAM

PROJECT NO.	50084478
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1

SHEET NO.



**NORTH FLORIDA ROCK
MINING EXPANSION**

JACKSON COUNTY
FLORIDA

SEAL

CHRIS SHORTT, P.E. 78424
EB 0008794

PRELIMINARY DOCUMENTS
NOT FOR CONSTRUCTION

SCALE



REVISIONS

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NO.	DESCRIPTION	DATE
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DRAWN BY B. ROCHER

APPROVED BY _____

— CHECKED BY C.SHORTT

TITLE

PHASE 2 LINE DIAGRAM

PROJECT NO.	50084478
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SHEET NO



**NORTH FLORIDA ROCK
MINING EXPANSION**

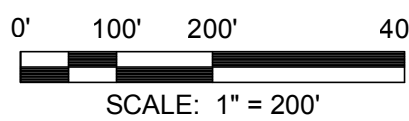
JACKSON COUNTY
FLORIDA

SEAL

CHRIS SHORTT, P.E. 78424
EB 0008794

PRELIMINARY DOCUMENTS
NOT FOR CONSTRUCTION

SCALE



REVISIONS

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NO.	DESCRIPTION	DATE
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DRAWN BY B. ROCHER

APPROVED BY _____

— CHECKED BY C.SHORTT

DATE JULY 2017

TITLE

PHASE 3 LINE DIAGRAM

PROJECT NO.	50084478
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3

SHEET NO.



October 4, 2017 (15:32:46 EST)
K:\50084478\NORTH FL ROCK MINING EXP_CIVIL\3DFOLDER_EXHIBITS\NPDES PERMITS\50084478_PHASE4 LD DWG BROCHER

E
D
C
B
A

1

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5



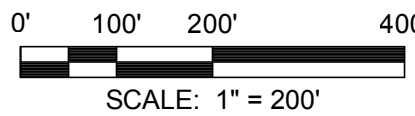
**NORTH FLORIDA ROCK
MINING EXPANSION**
**JACKSON COUNTY
FLORIDA**

SEAL

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EB 0008794

PRELIMINARY DOCUMENTS
NOT FOR CONSTRUCTION

SCALE



REVISIONS

NO.	DESCRIPTION	DATE

DRAWN BY	B. ROCHER
APPROVED BY	
CHECKED BY	C.SHORTT
DATE	JULY 2017

TITLE

**PHASE 4
LINE DIAGRAM**

PROJECT NO. 50084478

SHEET NO.

**NORTH FLORIDA ROCK
MINING EXPANSION**

JACKSON COUNTY
FLORIDA

SEAL

CHRIS SHORTT, P.E. 78424
EB 0008794

PRELIMINARY DOCUMENTS
NOT FOR CONSTRUCTION

SCALE



REVISIONS

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NO.	DESCRIPTION	DATE
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DRAWN BY B. ROCHER

APPROVED BY _____

— CHECKED BY C.SHORTT

DATE JULY 2017

TITLE

PHASE 5 LINE DIAGRAM

PROJECT NO.	50084478
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5

SHEET NO.



**NORTH FLORIDA ROCK
MINING EXPANSION**

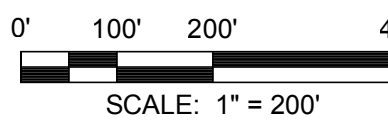
JACKSON COUNTY
FLORIDA

SEAL

CHRIS SHORTT, P.E. 78424
EB 0008794

PRELIMINARY DOCUMENTS
NOT FOR CONSTRUCTION

SCALE



REVISIONS

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NO.	DESCRIPTION	DATE
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DRAWN BY B. ROCHER

APPROVED BY _____

— CHECKED BY C.SHORTT

TITLE

PHASE 6 LINE DIAGRAM

PROJECT NO.	50084478
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SHEET NO.



**FACT SHEET
FOR
STATE OF FLORIDA INDUSTRIAL WASTEWATER FACILITY PERMIT**

PERMIT NUMBER: FL0980722-001 (Minor)
FACILITY NAME: North Florida Rock
FACILITY LOCATION: 5160 Vermont Rd, Marianna, FL 32448-7473
Jackson County

NAME OF PERMITTEE: North Florida Rock LLC

PERMIT WRITER: Bill Evans, P.E.

1. SUMMARY OF APPLICATION

a. Chronology of Application

Application Number: FL0980722-001-IW3S
Application Submittal Date: March 16, 2017
Additional Information Date: August 23 and December 16, 2017
Public Notice of Application Date: DEP Notice on March 20, 2017 with Publication in the Jackson County
Floridan on March 22, 2017

b. Type of Facility

Multiple mechanically-mined limestone pit areas and processing facility. There are six phases of mining and dewatering operations.

Phase 1: Active pits A and C (existing operations)

Phase 2: Active pits B and D with dewatering of inactive pit A

Phase 3: Active pits C and D

Phase 4: Active pits D and E

Phase 5: Active pits E and F

Phase 6: Active pit F

SIC Code: 1411 - Dimension Stone Mining and Quarrying

c. Facility Capacity

Existing Permitted Capacity:	0.00 mgd Annual Average Daily Flow
Proposed Increase in Permitted Capacity:	6.39 mgd Annual Average Daily Flow
Proposed Total Permitted Capacity:	6.39 mgd Annual Average Daily Flow

d. Description of Wastewater Treatment

Dewatering of ground water and rain water from active limestone quarry mines. Wastewater treatment is provided by settling ponds and/or inactive mining pits as settling ponds to meet surface water criteria.

Phase 1: Active pits A and C (existing operations): modified existing settling pond relocating dewatering pump discharge pipes to maximize flow path to new 8-foot broad-crested weir with concrete block agitators on discharge slope of weir with overland flow to outfall D-001. (6.23 MGD AADF)

Phase 2: Active pits B and D with dewatering of inactive pit A: temporarily inactive pit C will flood as settling pond with new drop box outfall piped to outfall D-002. (6.39 MGD AADF)

Phase 3: Active pits C and D: completed pits, the combined pits A/B that will flood as settling pond with drop box outfall piped to outfall D-001. (6.09 MGD AADF)

Phase 4: Active pits D and E: Pit D will dewater to the combined pits A/B that will flood as settling pond with a drop box outfall piped to outfall D-001. (1.98 MGD AADF) Pit E will dewater to completed pit C that will flood as settling pond with a drop box outfall piped to outfall D-002. (4.07 MGD AADF)

Phase 5: Active pits E and F: Pit E will dewater to completed pit C that will flood as settling pond with a drop box outfall piped to outfall D-002. (4.07 MGD AADF) Pit F will dewater to the combined pits A/B that will flood as settling pond with a drop box outfall piped to outfall D-001. (1.83 MGD AADF)

Phase 6: Active pit F: Pit F will dewater to the combined pits A/B that will flood as settling pond with a drop box outfall piped to outfall D-001. (3.56 MGD AADF)

e. Description of Effluent Disposal (as reported by applicant)

See map(s) attached to permit for effluent disposal and land application site(s).

Monitoring Group D-001: Class III Fresh Waters, un-named intermittent creek to swallet approximately 45-feet inland from the bank of the Chipola River, landward of the natural floodplain bank, Class III Fresh Waters, (WBID# 51D)

Pollutants which are present in significant quantities or which are subject to permit limitations are as follows:

Parameter	Units	Max/Min	Reported Value	Statistical Basis
Flow	MGD	Max	6.23	Annual Average
Oxygen, Dissolved (DO)	mg/L	Min	4.56	Single Sample
Turbidity	NTU	Max	11.1	Single Sample
pH	s.u.	Max	8.2	Single Sample
pH	s.u.	Min	7.79	Single Sample
Specific Conductance	umhos/cm	Max	485	Single Sample
Solids, Total Suspended	mg/L	Max	10	Single Sample
Nitrogen, Total	mg/L	Max	0.68	Single Sample
Phosphorus, Total (as P)	mg/L	Max	BDL < 0.12	Single Sample
Nitrite plus Nitrate, Total 1 det. (as N)	mg/L	Max	0.43	Single Sample
Ammonia (as N)	Mg/L	Max	BDL < 0.05	Single Sample

Monitoring Group D-002: Class III Fresh Waters, un-named tributary approximately 1,500 feet to the Chipola River, Class III Fresh Waters and Outstanding Florida Water (OFW), (WBID# 51D)

Pollutants which are present in significant quantities or which are subject to permit limitations are as follows:

Parameter	Units	Max/Min	Reported Value	Statistical Basis
Flow	MGD	Max	6.39	Annual Average
Oxygen, Dissolved (DO)	mg/L	Min	4.56	Single Sample
Turbidity	NTU	Max	11.1	Single Sample
pH	s.u.	Max	8.2	Single Sample
pH	s.u.	Min	7.79	Single Sample
Specific Conductance	umhos/cm	Max	485	Single Sample
Solids, Total Suspended	mg/L	Max	10	Single Sample
Nitrogen, Total	mg/L	Max	0.68	Single Sample
Phosphorus, Total (as P)	mg/L	Max	BDL < 0.12	Single Sample
Nitrite plus Nitrate, Total 1 det. (as N)	mg/L	Max	0.43	Single Sample
Ammonia (as N)	Mg/L	Max	BDL < 0.05	Single Sample

2. SUMMARY OF SURFACE WATER DISCHARGE

This facility has two new discharges to surface waters. Application addressed antidegradation permitting requirements of Rules 62-302.300 and 62-4.242(1)(b)1 - 4 for the proposed indirect discharges to an Outstanding Florida Water (OFW) which result in water quality degradation is necessary or desirable under federal standards and under circumstances which are clearly in the public interest, 62-4.242(1)(d) 1 and 2 for industrial wastewater facilities and Antidegradation Permitting Standards Applying to Outstanding Florida Waters, 62-4.242(2), F.A.C. that the two discharges are clearly in the public interest and as indirect discharges to an OFW would not significantly degrade the existing ambient water quality within the Chipola River, OFW (WBID# 51D). See attached Level I WQBEL.

The Department does not anticipate adverse impacts on threatened or endangered species because of permit issuance.

3. BASIS FOR PERMIT LIMITATIONS AND MONITORING REQUIREMENTS

D-001: This facility is authorized to discharge process wastewater, stormwater, and ground water from Outfall D-001 to un-named intermittent creek to swallet based on the following:

Parameter	Units	Max/ Min	Limit	Statistical Basis	Rationale
Flow	MGD	Max	Report	Annual Average	62-660 and 62-620.320(6)
				Monthly Average	62-660 and 62-620.320(6)
Oxygen, Dissolved	percent samples in compliance (% smpcmpln)	Max	90	Monthly Total	62-302 Dissolved Oxygen
Turbidity	NTU	Max	29	Single Sample	62-302.530(70) Turbidity
pH	s.u.	Max	8.5	Single Sample	62-302.530(52)(c) pH
		Min	6.0	Single Sample	62-302.530(52)(c) pH
Specific Conductance	umhos/cm	Max	1275	Single Sample	62-302.530(22) Specific Conductance
Solids, Total Suspended	mg/L	Max	20	Annual Average	62-620.320(6)
			30	Monthly Average	62-620.320(6)
			45	Weekly Average	62-620.320(6)
			60	Single Sample	62-620.320(6)
Nitrogen, Total	mg/L	Max	Report	Annual Average	62-302.531(2)(c) NNC and 62-620.320(6)
				Monthly Average	62-302.531(2)(c) NNC and 62-620.320(6)
Phosphorus, Total (as P)	mg/L	Max	Report	Annual Average	62-302.531(2)(c) NNC and 62-620.320(6)
				Monthly Average	62-302.531(2)(c) NNC and 62-620.320(6)
Chlorophyll a	ug/L	Max	Report	Annual Average	62-302.531(2)(c) NNC and 62-620.320(6)
				Monthly Average	62-302.531(2)(c) NNC and 62-620.320(6)

Technology based effluent limitations (TBELs) are minimum waste treatment requirements based on treatment technologies for reducing discharges of pollutants into receiving waters. TBELs are established, for industrial wastewater facilities, by state rule in Chapters 62-620, 62-660, and 62-670, F.A.C.; they may also be developed in accordance with best professional judgment. Total Suspended Solids (TSS) are a TBEL included in the permit for both D-001 and D-002 monitoring groups.

Water quality based effluent limitations (WQBELs) are effluent limitations, which may be more stringent than a technology based effluent limitation, that have been determined necessary by the Department to ensure that water quality standards in a receiving body of water will not be violated. WQBELs are developed in accordance with Chapter 62-650, F.A.C., and are based on the characteristics of the discharge, the receiving water characteristics, and the criteria and standards in Chapters 62-4, 62-302, F.A.C.; they may also be developed based on Total Maximum Daily Load (TMDL) allocations adopted in Chapter 62-304, F.A.C., or allocations developed as part of a Basin Management Action Plan (BMAP) or a Reasonable Assurance Plan (RAP). WQBELs are basis for limits for DO, turbidity, pH, and specific conductance for both D-001 and D-002 monitoring groups. See attached Level I WQBEL.

D-002: This facility is authorized to discharge process wastewater, stormwater, and ground water from Outfall D-002 to un-named tributary approximately 1,500 feet to the Chipola River, Class III Fresh Waters and Outstanding Florida Water (OFW), (WBID# 51D) based on the following:

Parameter	Units	Max/ Min	Limit	Statistical Basis	Rationale
Flow	MGD	Max	Report	Annual Average	62-660 and 62-620.320(6)
				Monthly Average	62-660 and 62-620.320(6)
Oxygen, Dissolved Percent Saturation	percent samples in compliance (% smpcmpln)	Max	90	Monthly Total	62-302 Dissolved Oxygen
Turbidity	NTU	Max	29	Single Sample	62-302.530(70) Turbidity
pH	s.u.	Max	8.5	Single Sample	62-302.530(52) (c) pH
		Min	6.0	Single Sample	62-302.530(52) (c) pH
Specific Conductance	umhos/cm	Max	1275	Single Sample	62-302.530(22) specific conductance
Solids, Total Suspended	mg/L	Max	20	Annual Average	62-620.320(6)
			30	Monthly Average	62-620.320(6)
			45	Weekly Average	62-620.320(6)
			60	Single Sample	62-620.320(6)
Nitrogen, Total	mg/L	Max	Report	Annual Average	62-302.531(2)(c) NNC and 62-620.320(6)
				Monthly Average	62-302.531(2)(c) NNC and 62-620.320(6)
Phosphorus, Total (as P)	mg/L	Max	Report	Annual Average	62-302 NNC and 62-620.320(6)
				Monthly Average	62-302 NNC and 62-620.320(6)
Chlorophyll a	ug/L	Max	Report	Annual Average	62-302.531(2)(c) NNC and 62-620.320(6)
				Monthly Average	62-302.531(2)(c) NNC and 62-620.320(6)

4. DISCUSSION OF CHANGES TO PERMIT LIMITATIONS

The wastewater permit for this facility is a new permit.

5. INDUSTRIAL SLUDGE MANAGEMENT REQUIREMENTS

This section is not applicable to this facility.

6. GROUND WATER MONITORING REQUIREMENTS

This section is not applicable to this facility.

7. PERMIT SCHEDULES

Schedule includes:

1. Improvement action to develop and implement Best Management Practices (BMP) Plan in accordance with permit part VII.
2. Submittal of Notification of Completion of Construction for Wastewater Facilities or Activities prior to placing each of the six phases of discharge into operation.

8. BEST MANAGEMENT PRACTICES/STORMWATER POLLUTION PREVENTION PLANS

As stated in Section VII of the permit, a Best Management Practices (BMP) Plan is required for the facility, pursuant to Rule 62-620.100(3)(m), F.A.C., and 40 CFR Part 122.44(k). The plan provides a facility-specific approach for the minimizing of pollutant discharge from ancillary activities.

9. ADMINISTRATIVE ORDERS (AO) AND CONSENT ORDERS (CO)

This facility entered into CO 17-1080, executed January 19, 2018, with the Department, which includes a schedule of compliance to obtain an NPDES permit for an unauthorized discharge.

10. REQUESTED VARIANCES OR ALTERNATIVES TO REQUIRED STANDARDS

No variances were requested for this facility.

11. THE ADMINISTRATIVE RECORD

The administrative record including application, draft permit, fact sheet, public notice (after release), comments received and additional information is available for public inspection during normal business hours at the location specified in item 13. The files are also available electronically from the Department's Electronic Document Search Portal using application number FL0980722001 <http://prodenv.dep.state.fl.us/DepNexus/public/searchPortal> or or electronically through DEP Oculus.

[https://depedms.dep.state.fl.us:443/Oculus/servlet/shell?command=hitlist&\[freeText=\]&\[folderName=\]&\[profile=\]&\[creator=\]&\[entityType=any\]&\[createdDateTo=\]&\[catalog=38\]&\[searchBy=Property\]&\[sortBy=Facility-Site+ID\]&\[createdDate=\]&{Facility-Site+ID=_EQ_FL0980722}](https://depedms.dep.state.fl.us:443/Oculus/servlet/shell?command=hitlist&[freeText=]&[folderName=]&[profile=]&[creator=]&[entityType=any]&[createdDateTo=]&[catalog=38]&[searchBy=Property]&[sortBy=Facility-Site+ID]&[createdDate=]&{Facility-Site+ID=_EQ_FL0980722})

Copies will be provided at a minimal charge per page.

12. PROPOSED SCHEDULE FOR PERMIT ISSUANCE

Draft Permit and Public Notice to Applicant November 9, 2018

Public Comment Period: Beginning: November 9, 2018
Ending: 30-days after newspaper publication, approximately December 17, 2018

Notice of Intent to Issue December 19, 2018

Notice of Permit Issuance 14-days after newspaper publication of Intent, approximately January 14, 2019

13. DEP CONTACT

Additional information concerning the permit and proposed schedule for permit issuance may be obtained during normal business hours from:

William A. Evans, P.E.
Wastewater Permitting Manager
Northwest District Office

160 W. Government Street, Suite 308
Pensacola, FL 32502-5740

Telephone No.: 850-595-0584 email: Bill.Evans@FloridaDEP.gov

Attachment: Level I WQBEL Report for North Florida Rock FL0980722-001-IW3S

Florida Department of Environmental Protection

Memorandum

Date: November 9, 2018

From: Bill Evans, P.E.

To: DEP File No. FL0980722-001-IW3S

Subject: LEVEL I WQBEL, North Florida Rock, Jackson County

The Level I WQBEL process applies to the renewal of existing permits when data are sufficient to determine that the receiving waters currently meet standards and are expected to continue to meet standards with the discharge [Rule 62-650.400(1)].

North Florida Rock is a 6.39 MGD annual average daily flow industrial wastewater effluent from a limestone mining operation. The discharge is from either or both Outfalls D-001 and D-002.

Surface Water Discharge, D-001, is a new 6.39 MGD annual average daily flow discharge to an unnamed intermittent creek to swallet (sinking stream to ground water) point of discharge is located approximately at latitude 30°38' 14.7841" N, longitude 85°10' 17.8426" W.

Surface Water Discharge, D-002, is a new 6.39 MGD annual average daily flow discharge to an unnamed tributary approximately 1,500 feet to Chipola River, Class III fresh waters, (WBID #51D) point of discharge is located approximately at latitude 30°38' 25.6209" N, longitude 85°9' 53.8985" W.

WATER QUALITY PARAMETERS EVALUATED FOR EFFLUENT LIMITS:

The downstream receiving water body for D-002 is the Chipola River, Class III fresh waters and Outstanding Florida Water, (WBID #51D). WBID #51D is listed as impaired on the Florida Comprehensive Study List of Impaired Waters for biology based upon failing bioassessments but is placed on the study list because a causative pollutant has not been identified. WBID #51D is not on the Comprehensive Verified List of Impaired Waters. WBID #51D is subject to the state-wide TMDL for mercury.

<https://floridadep.gov/dear/watershed-assessment-section/content/assessment-lists>

This facility has a proposed indirect discharge to a water body that does not meet the following water quality criteria or designated uses: biology. However, the permit writer has determined that no effluent limitation is needed for this/these parameter(s) because the effluent has no chemical pollutants and is very low in nutrients, as described later. If data becomes available that indicates an effluent limitation is needed, the Department will re-open the permit to include a limit. The Department is allowing this discharge to impaired waters because the facility has provided reasonable assurance that the discharge will not cause or contribute to violations of water quality standards.

DISSOLVED OXYGEN (DO) PERCENT SATURATION CRITERIA:

Due to the effluent single sample dissolved oxygen (DO) reported as 4.56 mg/L, which is below the old 5.0 mg/L minimum criteria, the current Freshwater DO criterion for the Panhandle West bioregion is 67 percent saturation, 62-302.533, which is higher than the previous minimum 5.0 mg/L DO. The Applicant proposed constructing passive aeration blocks within the outfall structure of each outfall D-001 and D-002 to meet the DO percent saturation limits in the permit of 90 percent of samples in compliance with the new DO Saturation criteria, see permit condition I.A.1, I.A.4 and I.A.5.

TOTAL AMMONIA NITROGEN (TAN):

EPA approved Florida's use of this new criteria, Rule 62-302.530(3), F.A.C., in July 2017 which replaced the previous freshwater un-ionized ammonia criteria with a new freshwater Total Ammonia Nitrogen (TAN) criteria. Using North Florida Rock single sample pH, 7.79-8.2, and temperature, 28.6 degrees C, the calculated TAN criterion, using the DEP TAN criteria calculator with screen shot below, is monthly average, 0.59, and single sample max, 1.48. North Florida Rock effluent ammonia was below detection level 0.05 mg/L. As there is non-detectable ammonia in the North Florida Rock effluent, TAN is not a parameter of concern and is not included in this permit.

Total Ammonia Nitrogen Criteria Calculator					
To use: 1) Press "Clear Entries" button on right to remove all old data entries. 2) Enter measured TAN concentration in mg/L (optional), Water Temperature in °C, and pH in standard units. 3. Once all required data is entered, the applicable TAN criteria are calculated automatically.					
Columns A - D (Unshaded) are for data entry. Additional notes are embedded as comments in the heading for each column, please review!					
Columns E (shaded Green) and Column F (shaded Blue) are results fields and are protected from change. <i>Do Not Attempt to Change These Fields!</i>					
Site ID	Measured Total Ammonia Nitrogen (TAN), mg/L	Measured Water Temperature, °C	Measured pH, Standard pH units	30-Day Average TAN Criteria Applicable to Individual Sample, mg/L	Applicable Single Sample TAN Criteria, mg/L
1		28.60	7.79	0.59	1.48
2		28.60	8.20	0.33	0.82

NUMERIC NUTRIENT CRITERIA (NNC):

Chipola River, WBID #51D, is not currently impaired for nutrients. However, WBID #51D is on the study list for biology for bioassessments of the Stream Condition Index (SCI) and current data suggests that that Rapid Periphyton Survey (RPS) is potentially impaired and Total Nitrogen (TN) annual geometric means (AGM) are very high which potentially would be added to the Study List in the future.

Numeric Nutrient Criteria (NNC) for freshwater streams is as follows:

NNC in paragraph 62-302.530(47)(b), F.A.C., shall be interpreted as being achieved in a stream segment if:

- *Information on chlorophyll a levels, algal mats or blooms, nuisance macrophyte growth, and changes in algal species composition do not indicate an imbalance in flora or fauna; Rule 62.302.531(2)(c), F.A.C. AND EITHER*
- *The average score of at least two temporally independent SCIs performed at representative locations and times is 40 or higher, with neither of the two most recent SCI scores less than 35 (i.e., no faunal imbalances), Rule 62-302.531(2)(c)1. F.A.C. OR*
- *The Nutrient Thresholds (expressed as annual geometric means) are not exceeded more than once in a three-year period, Rule 62-302.531(2)(c)2., F.A.C.*

Nutrient Watershed Region	Total Phosphorus Nutrient Threshold	Total Nitrogen Nutrient Threshold
Panhandle West	0.06 mg/L	0.67 mg/L

North Florida Rock (NFR) effluent single sample was below detection < 0.12 mg/L Total Phosphorus (TP) and 0.68 mg/L Total Nitrogen (TN). Blasting operations were considered as a possible nitrogen source, but NFR's explosive supplier Florex Explosives, Inc. responded that their emulsion-type explosive is free of any chemical on the OSHA list of carcinogens, is basically comprised of mineral oil, nitric acid, ammonia, silica and water. Florex Explosives product has undergone extensive independent testing for post-blast contaminants and has never had a test where detectable increase in contamination from their operations. NFR effluent has no source of nutrients other than what is present in the ground water that they are dewatering. NFR effluent will dominate flow in both receiving waters but is not expected to cause a violation of the NNC. Effluent TN, TP and Chlorophyll a will be monitored monthly.

SPECIFIC CONDUCTANCE: NFR effluent single sample was 485 umhos/cm which is below the WQC 1,275 umhos/cm and will be monitored weekly with the WQC limit.

TURBIDITY: NFR effluent single sample was 11.1 NTU which is below the WQC 29 NTU above background and will be monitored weekly with a 29 NTU limit without a background as no background is applicable in these receiving waters.

FECAL COLIFORM & E-COLI MONITORING: This facility has no source of sanitary wastewater to the mining pits and therefore has no disinfection requirement and no monitoring for E. coli bacteria, 62-302.530(6)(b), F.A.C.

METALS: Application marked “believed absent” for priority pollutants for GC/MS fractions (volatile, acid and base/neutral compounds, toxic metals, cyanide and total phenols.

ORGANOCHLORINE PESTICIDES: NFR screened their effluent for Organochlorine Pesticides, EPA Method 608. All analytes, including Dieldrin, were below detection levels (BDL).

MERCURY: The Statewide TMDL for Mercury, Subsection 62-304.900(1), F.A.C., states that mercury minimization plans are required for industrial wastewater facilities that demonstrate quantifiable mercury (total) levels in their effluent. <https://www.flrules.org/gateway/ChapterHome.asp?Chapter=62-304>
We have no data of detectable mercury nor do we expect this mining facility to be a source of mercury, so this permit does not require development of a mercury minimization plan.

WHOLE EFFLUENT TOXICITY:

Pursuant to Rule 62-620.620(3)(a)3., because this minor industrial wastewater facility is not expected to have the potential for aquatic toxicity, whole effluent toxicity is not a requirement in this new permit.

ANTIDegradation Permitting Requirements Including Standards Applying to Outstanding Florida Water (OFW): 62-4.242(1) & (2), F.A.C.

NFR’s proposed two outfalls are not direct discharges to the Chipola River, OFW (WBID# 51D) but are indirect discharges:

D-001 is a short effluent dominated intermittent stream segment that sinks into a swallet, approximately 45-feet inland from the bank of the Chipola, landward of the natural floodplain bank, the surface flow becomes ground water in a sinking stream which potentially has an indirect discharge through the ground water. NFR reported that at the swallet there was no evidence of regular ponding and it appears that surface water flows, unimpeded, into ground water. NFR evaluation of the riverbank, 100 feet in each direction, showed no evidence of surface connectivity either over or under the natural floodplain berm.

D-002 would discharge through an un-named tributary approximately 1,500 feet of meandering bottomland hardwood wetland/stream to its confluence with the Chipola.

Antidegradation requirements for an industrial wastewater facility, Rules 62-4.242(1)(d)1 & 2, F.A.C. NFR antidegradation statement concluded that there is no other economically and technologically reasonable discharge location, land application or recycling offsite to deal with 6.39 MGD of ground water and stormwater. NFR antidegradation statement concluded that a waste minimization and source reduction analysis was not applicable to their proposed discharge as the effluent is only ground water and stormwater and their mining operation, including assessment of the blasting operation, has no traditional waste stream to minimize or reduce. Starting with Phase 2 and future phases of mining operations, large inactive or completed mining pits will be used for settling ponds and interconnection to ground water should reduce the surface water discharges through both D-001 and D-002.

Antidegradation Permitting Requirements, 62-4.242(1)(b)1, 2, 3 and 4, F.A.C. were addressed in the NFR application including the North Florida Rock Listed Species Survey, Jackson County, Florida and concluded that the degradation within the immediate receiving streams would comply with water quality criteria which meets the requirement that the water quality degradation is necessary or desirable under federal standards and under circumstances which are clearly in the public interest.

Antidegradation Permitting Standards Applying to Outstanding Florida Waters, 62-4.242(2), F.A.C. NFR antidegradation statement concluded that the two discharges are clearly in the public interest and would not significantly degrade the existing ambient water quality within the Chipola River, OFW (WBID# 51D).

See application Antidegradation statements, submitted August 23 and December 16, 2017.

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CONCLUSION:

Based on the information included in this LEVEL I WQBEL and antidegradation analysis, this facility has provided reasonable assurance that the proposed new discharges will not adversely affect the designated use of the receiving water and the new discharge, has been evaluated in accordance with the Department's reasonable assurance procedures to ensure that no limits other than those included in this permit are needed to maintain Florida water quality standards.